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Justifying violence: legitimacy, ideology and public support for police use of force

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ABSTRACT

Under what conditions do people support police use of force? In this paper we assess some of the empirical links between police legitimacy, political ideology (right-wing authoritarianism and social dominance orientation), and support for ‘reasonable’ use of force (e.g. an officer striking a citizen in self-defence) and ‘excessive’ use of force (e.g. an officer using violence to arrest an unarmed person who is not offering violent resistance). Analysing data from an online survey with US participants ($n = 186$) we find that legitimacy is a positive predictor of reasonable but not excessive police use of force, and that political ideology predicts support for excessive but not reasonable use of force. We conclude with the idea that legitimacy places normative constraints around police power. On the one hand, legitimacy is associated with increased support for the use of force, but only when violence is bounded within certain acceptable limits. On the other hand, excessive use of force seems to require an extra-legal justification that is – at least in our analysis – partly ideological. Our findings open up a new direction of research in what is currently a rather sparse psychological literature on the ability of legitimacy to ‘tame’ coercive power.

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Attitudes towards police use of force; legitimacy; right-wing authoritarianism; social dominance orientation

Police use of force is a hot topic in countries across the world. In the US the nature, extent and impact of police violence has sparked vigorous debate among commentators, policy-makers, practitioners and academics (e.g. Fagan, Braga, Brunson, & Pattavina, 2015; Geller, Fagan, Tyler, & Link, 2014; Justice & Meares, 2014; New York Civil Liberties Union, 2013; President’s Task Force on 21st Century Policing, 2015; Tyler, Fagan, & Geller, 2014, 2015). In the wake of incidents in Ferguson, Staten Island and North Charleston (Baker, 2015) – and against the backdrop of the well-documented use of excessive force in the policing of minority communities – debate has focused on implicit bias and structural racism, the conditions under which police violence is justified, and whether officers are ever properly held to account for what many view to be illegitimate actions which amount to nothing more than an abuse of power (e.g. Alpert, 2015; Glaser, 2015; Pickett, 2015; Richardson & Goff, 2014; Smith, 2015).

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Police officers are authorized to use coercive violence, but the use of force must be justified according to legal statutes, professional standards and societal expectations about morally appropriate conduct. Legitimacy is central to any debate about the use and misuse of force. Political philosophers often use legitimacy as a normatively laden term to describe whether states (or state institutions) meet certain desirable standards (Hinsch, 2008, 2010). In political debate we naturally and properly want to make value judgments about the extent to which regimes (or institutions within regimes) exercise legitimate authority, judged against external or 'objective' criteria. Whether police routinely abuse their coercive power is likely to be one such external criterion. But the term 'legitimacy' is also used to describe whether as a matter of fact those who are subject to authority confer legitimacy on that authority. 'Empirical' legitimacy (Hinsch, 2008, 2010) is the subjective belief among citizens regarding whether an institution has the right to power and is thus entitled to be obeyed (Tyler, 2006; Tyler & Jackson, 2013).

In this paper we present what is – to our knowledge – the first study into the role that empirical legitimacy (and political ideology) plays in explaining people's beliefs about the appropriateness of police violence in specific contexts. We distinguish between public support for 'reasonable' and 'excessive' police use of force. On the one hand, reasonable use of force is proportionate to the seriousness of the threat, using the minimum amount required for police officers to carry out their job. On the other hand, excessive use of force is where the amount of violence exceeds the seriousness of the threat and the minimum amount required to control the situation. A key theoretical question is the extent to which legitimacy places normative limits around appropriate use of force in the eyes of citizens (producing popular consent for the use of reasonable but not excessive violence). Drawing on a convenience sample of US citizens – a limitation of the study that we return to at the end of the paper – we differentiate between reasonable and excessive force; we apply a two-dimensional conceptualization of legitimacy (Bradford, Hohl, Jackson, & MacQueen, 2015; Huq, Jackson, & Trinkner, 2016; Jackson, 2015) and we evaluate whether the two constituent parts of police legitimacy are associated with the support for reasonable but not excessive use of force.

In addition to addressing the links between legitimacy and public support for police use of force, we also examine the role of ideology. Political ideology constitutes a varied set of shared beliefs about the appropriate order of society and the accepted means to achieve this order. Ideology defines guidelines to legitimize or de-legitimize persons, groups and social practices (Erikson, Luttbeg, & Tedin, 1988; Pratto, 1999) and two ideological attitudes have been shown to predict a wide range of social attitudes: right-wing authoritarianism (RWA) and social dominance orientation (SDO). We reason that excessive use of force may require extra-legal justification – in this case something that goes beyond institutional legitimacy – and we examine whether people high in RWA and SDO tend to express stronger support for excessive police use of force. We include legitimacy and ideology in the same regression model in order to tease apart the variance that they might variously explain.

The paper proceeds as follows. In the next section we briefly review work into public attitudes towards police use of force. We then consider why legitimacy and political ideology may predict these attitudes. After summarizing our hypotheses and presenting the findings, we finish the paper with some discussion of the implications of our work.

Public consent towards police violence

According to Weber (2004) one of the distinctive features of the modern state is that it claims the sole and legitimate right to use (and authorize) physical force within the states' territory (see also Arthur & Case, 1994). Many citizens cede the use of violent means to state institutions such as the police and the military, yet this does not mean that officials are authorized to apply any amount of force they see fit. The distinction between reasonable and excessive use of force is central for legal requirements and professional standards; officers should use only the minimum amount of force considered reasonable according to the seriousness of the threat, with departmental discipline or even legal prosecution warranted for unjustifiable use of force (Alpert & Dunham, 2004; Prenzler, Porter, & Alpert, 2013). When an offender poses an imminent threat to the police officer or to others, police officers are however allowed to use deadly force. The same is true when there is probable cause that indicates that the suspect has engaged in a crime that involves the threat or the infliction of serious bodily harm (and the police officers have warned the suspect, if possible) (Perkins & Bourgeois, 2006).

The distinction between reasonable and excessive force is also important when it comes to public attitudes towards police violence. Looking across the extant criminological literature, higher public support emerges when force is considered to be reasonable than in situations where force is considered excessive (Johnson & Kuhns, 2009). Yet, while a good amount of research has been conducted on individual and community-based factors that predict actual police use of force (see Prenzler et al., 2013 for a review), little research has tried to uncover the reasons why people accept and justify police use of force. Even less work has addressed the issue from a psychological perspective, with the few studies into the topic tending to consider socio-demographic correlates (indeed most of these studies analyse data from the General Social Survey,¹ e.g. Arthur & Case, 1994; Barkan & Cohn, 1998; Johnson & Kuhns, 2009).

The most consistent finding in the US criminological literature is that minority group members are more critical towards police use of force than majority group members (Arthur & Case, 1994; Barkan & Cohn, 1998; Johnson & Kuhns, 2009), with this statistical effect remaining even after controlling for socio-demographics such as income, education and employment (Jefferis, Butcher, & Hanley, 2011). According to Jefferis et al. (2011) such negative attitudes are probably due to negative experiences between citizens and the police in minority communities, as well as experiences reported through the media. Johnson and Kuhns (2009) found that both the race of the respondent and the race of the offender (police officer) predicted attitudes towards police use of force. Research also shows that men generally express higher approval of excessive (Barkan & Cohn, 1998; Johnson & Kuhns, 2009) and reasonable (Johnson & Kuhns, 2009) use of force than women. Higher levels of education have been found to be associated with lower levels of support for police use of force (Arthur & Case, 1994), while there is no consistent finding on the role of age (see Johnson & Kuhns, 2009).

Fear of crime may also be a factor. Yet, while it is plausible that people who feel personally at risk also tend to favour police use of force as a way of increasing social control (see Arthur & Case, 1994), findings here are again limited and mixed. Positive attitudes towards excessive use of force were found among whites who express fear of crime (Barkan & Cohn, 1998), but no statistical effect of fear of crime was found in other studies

(Johnson & Kuhns, 2009). One study (Kalmoe, 2013) that predicted attitudes towards state violence (not police use of force) found significant effects of an aggressive personality on support for the death penalty, painful interrogation, killing terrorist leaders and bombing Iran. A few studies have also looked into attitudes towards police use of force among police officers (Tankebe, 2011; Weisburd, Hinkle, Famega, & Ready, 2011).

A legitimacy-based account of attitudes towards police use of force

In sum, while there are a number of existing criminological studies into this topic, what motivates the current study is the lack of a psychological analysis of public support towards police violence. We first consider the role of legitimacy. Legitimacy is the belief among citizens that a power-holder has the right to power and the authority to dictate appropriate behaviour (Sunshine & Tyler, 2003; Tyler, 2006; Tyler & Jackson, 2014). Central to procedural justice theory is the idea that power-holders must wield their authority in ways that accord with common 'norms, values, beliefs and definitions' (Suchman, 1995, p. 574) if they are to be seen as legitimate by subordinates. Applied to the police, to establish and maintain their legitimacy in the eyes of citizens, officers must act in appropriate, just and proper ways (Jackson, Bradford, Hough et al., 2012; Sunshine & Tyler, 2003; Tyler, Jackson, & Mentovich, 2015). In the words of Coicaud (2013, p. 40): '... the whole purpose of legitimacy, of connecting power with legitimacy, is to put limits on the nature and exercise of power'. Once legal authorities are seen as legitimate, people will be more likely to engage in normatively desirable law-related attitudes and behaviours. This then reduces the need for authorities to engage in costly and intrusive social control practices (Tyler et al., 2015).

To our knowledge only a handful of studies have *circled* the link between legitimacy and public endorsement of police use of force. Sunshine and Tyler (2003) asked NYC residents about their endorsement of police power and activities (e.g. whether they agreed or disagreed with statements like: 'The police should have the right to stop and question people on the street'), and if people thought the police were effective, procedurally fair and legitimate, they were more likely to agree with such sentiments. Jackson, Bradford, Stanko, and Hohl (2012) found that young men from various ethnic minority communities in London who had seen the police use unjustified violence, and who lived with somebody who had seen the police use unjustified violence, tended to see the police as less legitimate. Their experiences of being 'stopped' and 'searched' were also important predictors of legitimacy, with legitimacy tending to be higher among people who felt that the officers who had stopped and questioned them acted in fair, neutral and accountable ways during the encounter. In related work, Jackson, Huq, Bradford, and Tyler (2013) found that legitimacy predicted people's beliefs about the acceptability of private violence to achieve social control (as a substitute for the police, for self-protection and the resolution of disputes) and social change (through violent protests and acts to achieve political goals). The argument was that police legitimacy judgments and positive attitudes to private violence may have a zero-sum relation in the aggregate: to the extent that the police gain legitimacy, their legitimating practices may secure a perceived normative monopoly on rightful force (Geerth & Mills, 1946), which in turn may have a 'crowding out' effect on attitudes to private uses of violence.

The contribution of the first part of the study is to examine whether legitimacy is related to people's belief that violence is acceptable *but only in certain normatively acceptable circumstances*. Legitimacy is typically defined along two lines – the right to power and the authority to govern (for discussion, see Bottoms & Tankebe, 2012; Jackson & Gau, 2015; Tyler & Jackson, 2013) – and to operationalize the first constituent part we draw on the notion of normative alignment. Normative alignment connects the principled justification of power to societal expectations regarding what constitutes legitimate *practice*. To feel normatively aligned with the police is to believe that police officers wield their authority in ways that accord with societal expectations about appropriate group conduct (Jackson, Bradford, Hough et al., 2012; Jackson, Bradford, Stanko et al., 2012; Tyler & Jackson, 2014), giving them the right to power. This then activates a corresponding commitment among citizens to the idea that they, too, should behave in normatively appropriate ways, including abiding by the law and cooperating with legal authorities (Jackson, 2015). We extend the list of potential outcomes of legitimacy to include the belief that police use of force is normatively justified under certain conditions. Proceeding on the basis that excessive use of force *steps outside of societal expectations regarding the appropriate use of power*, of particular interest is whether normative alignment is positively associated with support for reasonable use of force, but unrelated to support for excessive use of force.

Why is this psychologically plausible? First, people who tend to believe that the police act in normatively appropriate ways may also tend to believe that it is acceptable for the police to use force against, for example, someone who is resisting arrest or as a means of self-defence. In essence, believing that the police are a proper and just institution encourages one to support actions that fall within existing normative boundaries of behaviour (witness public outcry when disproportionate police violence is used but not when reasonable police violence is used). Conversely, people who tend *not* to believe that the police are legitimate may also tend *not* to believe that it is acceptable for the police to use force against (for instance) someone who is resisting arrest and as a means of self-defence. In other words, they are withdrawing support for even reasonable violence because the use of such a specific power is premised on the rightfulness of their power more broadly.

Second, normative alignment may be unrelated to attitudes towards excessive use of force precisely because such practice sits outside of widely shared societal norms. Legitimacy is bound up with societal expectations about desirable conduct; it is won when authority figures act in normatively appropriate ways and lost when they do not; and it encourages normatively appropriate law-related attitudes and behaviours among citizens who see authorities as legitimate. If excessive violence is counter-normative, then it is reasonable to predict that the acceptability of excessive use of force will be generally low and that normative alignment will be uncorrelated with support for excessive force. In other words, the general belief that the police act appropriately might not translate into support for them to act inappropriately in certain limited contexts.

The other aspect of legitimacy is duty to obey. If one accepts the authority of the police to dictate appropriate behaviour, one feels a corresponding duty to obey the orders and rules emanating from that authority (Tyler, 2006). One will comply with their directives willingly and '[...] voluntarily out of obligation rather than out of fear of punishment or anticipation of reward' (Tyler, 2006, p. 375). In the current context, duty to obey may be related to support for police use of force because it represents a deferent stance towards the

institution. Duty to obey is about allowing the judgements, order and rules of an authority to supersede and replace one's own judgement. When citizens feel a duty to obey, they grant officers the right to dictate their own behaviour – here the right to use force, to decide when it is appropriate, and to be supported (not questioned) by citizens in such use. This might be considered to be a subset of a broader process of granting a power-holder the right to determine what is proper, desirable and the right thing to do in a given context or situation (Kelman, 1973; Kelman & Hamilton, 1989). Importantly, we regress in the current study support for police violence on duty to obey, while also adjusting for normative alignment, thus allowing us to tease apart the role of authorization and moral endorsement.

But again the distinction between reasonable and excessive force is important. In fact one might expect that duty to obey would be more positively associated with the perceived acceptability of excessive violence (compared to normative alignment). People who feel a strong moral duty to obey the police may also tend to support excessive police violence out of a sense of unquestioning deference; they allow the police to dictate what is appropriate, even if that behaviour is counter-normative; in essence, an act becomes the right thing to do when it is committed by a legitimate authority (cf. Bradford, Milani, & Jackson, 2016; Harkin, 2015; Hough, Bradford, Jackson, & Quinton, 2016).² By contrast, we might expect duty to obey to be unrelated to support for excessive violence if there are normative limits to the duty to obey construct. If duty to obey is rooted in the recognition of justified power and legal citizenship (see Bradford et al., 2015) then it may be positively associated with the acceptability of reasonable force, but be unrelated to the acceptability of excessive use of force – it may, in other words, represent a sense of authorization that has important limits in terms of appropriate conduct.

An ideological account of attitudes towards police use of force

The second central feature of the study concerns political ideology. If legitimacy is about the belief that the police are a morally appropriate institution that should be obeyed, political ideology is a broader set of preferences for how society should be organized and how institutions should be designed and operate (see Pratto, 1999). We focus on two ideologies (RWA and SDO). Altemeyer (1981, 1988) defines RWA as the covariation of three attitudinal clusters: authoritarian submission, authoritarian aggression and conventionalism. High authoritarians are more likely to perceive situations as threatening (Cohrs & Ibler, 2009) and to favour policies that help controlling social threats and bring back security and order, such as the restriction of civil liberties (Cohrs, Kielmann, Maes, & Moschner, 2005) and punitive responses to crime (Gerber & Jackson, 2013, 2016). Individuals high in authoritarianism may be more likely to legitimize authorities (such as police officers), to be generally more supportive of acts carried out by authorities, and in particular if these acts are perceived as helping to control social threats. On the whole, high RWA's are motivated to control social threats and should be willing to accept extreme measures if necessary. While most people might accept police violence to some extent (or when this violence is considered to be reasonable), we reason that high authoritarians will be willing to accept higher levels of police violence if this violence can help maintaining social order. We therefore hypothesize that RWA will predict the justification of excessive, yet not reasonable, use of force.

SDO, on the other hand, has been defined as a 'general attitudinal orientation toward intergroup relations, reflecting whether one generally prefers such relations to be equal, versus hierarchical' (Pratto, Sidanius, Stallworth, & Malle, 1994, p. 742). According to the latest conceptualization (Ho et al., 2015), SDO comprises two separate dimensions: a preference for group-based social systems where higher status groups dominate over lower status groups (SDO-dominance), and a preference for systems where inequalities are sustained by means of ideologies and social policies that enhance hierarchies (SDO-egalitarianism). People high in SDO tend to be tough-minded (Duckitt, 2006) and express low levels of empathy (Cohrs, Moschner, Maes, & Kielmann, 2005). High SDO's tend to support policies that seek to increase social inequality, and given their tough-mindedness, they are even willing to support harsh measures such as military actions (e.g. Cohrs, Moschner, et al., 2005; McFarland, 2005), harsh interrogation of suspects (Anderson, Roberts, & Struck, 2009) and punitive responses to crime (Gerber & Jackson, 2013). Police use of force is one of such measures that should be consistent with high levels of SDO. Police officers often treat subordinate group members (such as members of minority groups or lower social classes) worse than members of advantaged groups (Barkan & Cohn, 1998; Johnson & Kuhns, 2009; Parks, 1970; Sidanius, Mitchell, & Navarrete, 2006), and social dominance theorists (Sidanius & Pratto, 2001) have argued that there is a tolerance of abuse committed by security forces against out-groups. Consistent with this argument, Chevigny (1997) found that police officers who were accused (but not necessarily found guilty) of committing violence against subordinate groups were rewarded (e.g. they received promotions) more than punished.

To our knowledge, only one study has explored the link between attitudes towards use of force and SDO. Perkins and Bourgeois (2006) used vignettes describing situations of police use of force that varied the amount of officers and shots fired per officer. The authors found that SDO predicted perceptions of misuse of force in situations where there was a large number of shots fired per officer. In the situation with the strongest use of force, people high in SDO perceived to a significantly lower degree that the police had engaged in excessive use of force. These findings are consistent with high SDO's tough-mindedness: while SDO does not make a difference in predicting attitudes towards proportionate use of force (probably because most people agree), it does predict acceptance of extreme misuse of force. Consistent with these findings, we expect people high in SDO to justify excessive, but not reasonable use of force.

This research

To examine the reasons why people support both reasonable and excessive use of force by police officers, we conducted a correlational study based on a convenience sample from the US to test four hypotheses:

- H₁: Normative alignment will predict attitudes towards reasonable but not excessive use of force.
- H₂: Duty to obey will predict attitudes towards reasonable but not excessive use of force.
- H₃: RWA will predict attitudes towards excessive but not reasonable use of force.
- H₄: SDO will predict attitudes towards excessive but not reasonable use of force.

Method

Participants

Two hundred and six persons from the US participated in an online study posted on Amazon's Mechanical Turk (MTurk). A request for the completion of a survey was placed on the website to be seen by a pool of US participants. Participants freely chose to complete the survey and were paid 0.50 US dollars after completion. While the sampling strategy was clearly non-representative, a study on the use of MTurk showed that the data collected through the website was at least as reliable as data collected through traditional methods. Crucially, participants were also more diverse in terms of socio-demographic variables than respondents in other Internet sampling pools (Buhrmester, Kwang, & Gosling, 2011).

Twenty participants (10%) were excluded for failing to respond correctly to at least one out of two validation questions embedded in the study. The reported results correspond to 186 participants. The sample was diverse in terms of gender (50% female), age (Min = 19, Max = 67, $M = 36$, $SD = 12.1$), occupation (58% worked, 14% unemployed, 13% students,) and ideology (47% leaning to the left, 25% centre, 27% leaning to the right); although less diverse in terms of ethnicity (77% white).

Measures

Attitudes towards police reasonable and excessive use of force were measured by asking respondents the extent to which they disapproved or approved of the police using violence in 10 different situations (using a scale that ranged from 1 = disapprove strongly to 7 = approve strongly). Items and descriptive results are presented in Table 1. The use of force was widely accepted among respondents in some situations (e.g. 76.9% approved

Table 1. Descriptive statistics of attitudes towards police reasonable use of and excessive force ($n = 186$).

	Mean	SD	% approve	Standardized factor loading (two-factor solution)
<i>Reasonable force</i>				
A policeman strikes a citizen who attacks the policeman with his fists	5.04	1.60	71.0	0.73
Government sends armed police forces to control violent riots	5.07	1.60	73.7	0.79
A policeman uses force to take into custody an offender who is resisting arrest	5.09	1.52	76.9	0.86
Policemen use clubs and guns to stop violent demonstrations	4.02	1.91	47.8	0.65
A law enforcement officer uses deadly force against a person who is armed and believed to pose a threat to other people's lives	5.40	1.47	80.6	0.71
<i>Excessive force</i>				
Police officers use violence to control non-violent demonstrations	1.74	1.30	5.9	0.73
A policeman strikes a citizen who has insulted the policeman	1.80	1.31	5.9	0.72
A policeman uses force to intimidate a suspect into giving a statement	2.11	1.45	8.1	0.67
A policeman uses force to effect an arrest of an unarmed person who is not offering violent resistance	1.85	1.31	7.5	0.73
A law enforcement officer uses physical force against an offender who is handcuffed and in police custody	1.82	1.34	7.5	0.82

of the use of force to take into custody an offender who is resisting arrest), yet not other, more excessive, situations (e.g. 8.1% approved of the use of force to intimidate a suspect into giving a statement).

Confirmatory factor analysis was carried out to examine whether these items indeed captured two different dimensions. Two models were tested: one model where all items loaded on one factor and another model with two factors (differentiating between reasonable and excessive use of force). The model with one factor had an extremely poor fit (Chi-square(35) = 411.61, $p < .01$; Chi-square/df = 11.76; RMSEA = 0.24; CFI = 0.53; TLI = 0.40) while the model with two factors had a reasonable fit according to traditional criteria (Chi-square(34) = 67.23, $p < .01$; Chi-square/df = 1.98; RMSEA = 0.07; CFI = 0.96; TLI = 0.95) (see Hooper, Coughlan, & Mullen, 2008). The two-factor model showed a significant – yet small – correlation between the justification of reasonable and excessive use of force ($r = 0.207$, $p = .011$). Table 1 displays standardized factor loadings for the two-factor solution, showing that all factor loadings fall between 0.65 and 0.86. Factor scores were derived to measure attitudes towards reasonable and excessive use of force. These factor scores were then used in the remaining analyses.

Two dimensions of police legitimacy were considered: felt obligation to obey (recognition of the authority to govern) and normative alignment (normative justifiability of power). To measure people's felt obligation to obey the police, respondents were asked to report their agreement or disagreement with three items: 'You should support the decisions made by police officers even when you disagree with them', 'You should do what the police tell you even if you do not understand or agree with the reasons', and 'You should do what the police tell you to do even if you do not like how they treat you' ($\alpha = 0.84$). Normative alignment was measured by asking respondents the extent to which they agreed with three items: 'The police generally have the same sense of right and wrong that you do', 'The police stand up for values that are important to you', and 'You and the police want the same things for your community' ($\alpha = 0.93$).

RWA was measured using a balanced 18 item scale from Duckitt et al.'s (2010) adaptation of Altemeyer's (1988) scale. Six items measured submission (e.g. 'Obedience and respect for authority are the most important virtues children should learn'), 6 items measured authoritarian aggression (e.g. 'We should smash all the negative elements that are causing trouble in our society') and 6 items measured conventionalism (e.g. 'It is important that we preserve our traditional values and moral standards'). In each subscale half of the items were pro-trait and half of the items were con-trait (overall $\alpha = 0.93$). SDO was measured using the 16-item scale from Pratto et al. (1994). Eight items captured preference for group dominance (e.g. 'To get ahead in life, it is sometimes necessary to step on other groups') and eight items captured preference for equality (e.g. 'We should do what we can to equalize conditions for different groups') ($\alpha = 0.93$).

Felt obligation to obey, normative alignment, RWA and SDO were all measured using scales (ranging from 1 = disagree strongly to 7 = agree strongly), with averages used in the remaining analyses. Finally, age gender, education level (no college/university degree, currently in college/university, college/university degree), ethnicity (white, other), aggressiveness and worry about crime were used as control variables. We added a measure for aggressiveness to confirm that the justification of police use of force is not a mere reflection of a positive disposition towards violence. Aggressiveness was measured using 12 items from Bryant and Smith's (2001) trait aggression scale.

Respondents were asked to report the extent to which different situations were false or true for them (on a scale ranging from 1 = completely false for me to 7 = completely true for me). This scale is composed of four subscales: physical (e.g. 'Given enough provocation, I may hit a person'), verbal (e.g. 'I often find myself disagreeing with people'), anger (e.g. 'I have trouble controlling my temper') and hostility (e.g. 'I wonder why sometimes I feel so bitter about things') ($\alpha = 0.87$). Worry about crime was measured asking respondents how worried they were (on a scale from 1 = not at all worried to 7 = very worried) about (1) having their home broken into and (2) being mugged or robbed (the average was taken) ($r = 0.643$, $p < .01$).

Analysis

We fitted a series of linear regression models predicting attitudes towards reasonable and excessive use of force. Variables were included in three steps. Model 1 considers only control variables. Model 2 includes the two measures of political ideology. Finally, Model 3 includes the two measures of police legitimacy.

Results

Tables 2 and 3 present the findings from three fitted linear regression models predicting, separately, attitudes towards reasonable and excessive use of force. For reasonable force, gender had no significant statistical effect on attitudes towards police reasonable use of force in any of the models ($p > .10$). The only control variable with a marginally significant effect was fear of crime (Model 1, $\beta = 0.09$, $p < .10$). Here, higher levels of fear of crime were related to higher support for the use of force. However, the effect of fear of crime became non-significant after controlling for political ideology. There were no effects of age, education level, ethnicity and aggressiveness ($p > .10$).

RWA had a significant and positive statistical effect on favouring reasonable use of force in Model 2 ($\beta = 0.34$, $p < .01$) but this effect became non-significant after controlling for

Table 2. Regression coefficients predicting attitudes towards police reasonable use of force ($n = 186$).

	Model 1	Model 2	Model 3
<i>Control variables</i>			
Female	-.16	-.24	-.20
Age	.01	.01	.00
Currently in college (0: No degree)	.19	.22	.16
Degree (0: No degree)	.15	.13	-.01
White (0: Other)	.10	.24	.21
Aggressiveness	.01	.01	.04
Fear of crime	.09†	.07	.04
<i>Political ideology</i>			
RWA		.34**	.10
SDO		.03	.03
<i>Perceptions and legitimacy of the police</i>			
Felt obligation to obey			.16*
Normative alignment			.24**
R-squared	0.04	0.17	0.34

** $p < .01$.

* $p < .05$.

† $p < .10$.

Table 3. Regression coefficients predicting attitudes towards police use of excessive force ($n = 186$).

	Model 1	Model 2	Model 3
<i>Control variables</i>			
Female	.23†	.25*	.26*
Age	-.01	-.01	-.01*
Currently in college (0: No degree)	-.15	-.08	-.09
Degree (0: No degree)	-.03	-.08	-.09
White (0: Other)	.01	.01	.00
Aggressiveness	.23**	.20**	.21**
Fear of crime	-.02	-.04	-.05
<i>Political ideology</i>			
RWA		.23**	.17**
SDO		.24**	.24**
<i>Perceptions and legitimacy of the police</i>			
Felt obligation to obey			.07
Normative alignment			.04
R-squared	0.09	0.31	0.33

** $p < .01$.* $p < .05$.† $p < .10$.

police legitimacy ($p > .10$). This finding suggests that the effect of RWA on attitudes towards police reasonable use of force is explained by higher levels of police legitimacy among high right-wing authoritarians. There was no significant effect of SDO ($p > .10$).

The most relevant predictor of attitudes towards police reasonable use of force was police legitimacy. In Model 3, there were positive and significant effects of normative alignment with the police ($\beta = 0.24$, $p < .01$) and felt obligation to obey the police ($\beta = 0.16$, $p < .05$). Model 3 explains 32% of the variance in attitudes towards police reasonable use of force. We therefore find evidence in favour of a legitimacy-based account of attitudes towards police reasonable use of force.

Strikingly, the findings on attitudes towards police excessive use of force are quite different (see Table 3). There is a stable and significant statistical effect of gender in all models, with females more in favour than males of police use of excessive force (something that is inconsistent with previous studies that have found more critical attitudes among women, e.g. Arthur & Case, 1994). Second, in Model 3 there is a significant – although small – effect of age, with older respondents being less in favour of police use of excessive force than younger respondents. The most consistent predictor of attitudes among control variables is aggressiveness (Model 1, $\beta = 0.23$, $p < .01$), with respondents expressing higher levels of trait aggressiveness tending to justify to a greater extent excessive violence by the police.

While the justification of using reasonable force was explained primarily by police legitimacy, use of excessive force seems to be more ideological in nature. There are positive and significant effects of RWA and SDO that remain after controlling for legitimacy (Model 3, RWA: $\beta = 0.17$, $p < .01$; SDO: $\beta = 0.24$, $p < .01$). Thus, individuals who display preferences to achieve collective security and those who express a motivation for power and dominance are also more likely to justify police excessive use of force. The model that includes ideology explains 31% of the variance in the justification of police use of excessive force. Police legitimacy, on the other hand, is not a significant predictor ($p > .10$).

Discussion

Use and misuse of force will always be a controversial issue in policing, with debate in the US currently focused on disproportionate and excessive force used against minority group members. Procedural justice and police legitimacy are two key themes in the twenty-first century taskforce on the future of policing, alongside the regulation of police violence (President's Task Force on 21st Century Policing, 2015). Yet, the link between police use of force and legitimacy remains unclear (cf. Bradford et al., 2016). In this study, we examined the extent to which legitimacy was related to the acceptability of police reasonable and excessive use of force. We asked not whether research participants believed that the police use excessive violence, but instead whether they thought that it was acceptable for officers to use reasonable and excessive violence in certain situations.

Our findings speak to an important theoretical issue: namely, whether legitimacy constrains coercive power (Bradford & Jackson, 2016; Coicaud, 2013; Hough et al., 2016). Legal authorities are increasingly recognizing the importance of generating and sustaining their legitimacy in the eyes of citizens, and if they are to encourage public support and cooperative/compliant behaviour, they need to engage in practices that reflect the normative constraint to their exercise of power – like, for instance, following principles of procedural fairness (Tyler, 2006) and respecting the limits of their authority (Huq et al., 2016). But might the legitimacy that is won by such practices in turn generate public support for normative (not counter-normative) police practices? Once they are seen as legitimate, might people somehow 'morally discount' or even authorize certain counter-normative police practices? We found that both parts of legitimacy were predictors of the support for using reasonable force, but were unrelated to the support for using excessive force (with levels of the perceived acceptability of excessive force being generally low). Our findings are thus consistent with the idea that legitimacy – both normative alignment and duty to obey – generates support and authorization of the use of force *but only within certain normative limits*.

One might reasonably view the finding regarding normative alignment to be not particularly surprising. After all, when it comes to support for various police practices, it would be counter-intuitive if normative alignment were related to support for counter-normative police activities. A key part of the concept is the idea that feeling normatively aligned with the police activates the belief that they – too – should act in normatively appropriate ways. By contrast, one might find the duty to obey finding to be more surprising. Duty to obey is about allowing the judgements, order and rules of an authority to supersede and replace one's own judgement, and it is plausible to suggest that duty to obey extends to a kind of consent and authorization that includes counter-normative police activity. One allows police officers to decide what is appropriate, even if that is excessive violence. An act becomes right when it is committed by a legitimate authority that one is deferent towards, and this may be especially so when the violence is directed towards a threatening group (Kelman, 1973). But we did not find this to be the case; duty to obey seems to have normatively constrained effects.

By contrast, political ideology was a predictor of the acceptability of excessive force. Two related political ideologies (RWA and SDO) predicted support for excessive use of

force (although not reasonable use of force). Findings suggest that excessive use of force requires justification that goes beyond police legitimacy, and one of such justifications might be ideological in nature. The simultaneous effects of RWA and SDO suggest that there are two different ideological motivations for supporting excessive use of force. Individuals high in RWA may tolerate police use of excessive force as a means to control social threats and increase security, and because they tend to be more trusting of authorities – such as the police – that work to promote social order. Individuals high in SDO, on the other hand, will be willing to view excessive use of force as justified because police using force against subordinate groups (as is often the case) can help maintaining power hierarchies intact.

We would like to finish this paper by discussing some limitations of the current research and possible avenues for future research. First, this study was carried out using a convenience sample of US citizens. While the focus of our paper has been to compare two models to predict attitudes towards police use of force, a representative replication of this study will allow us to generalize to a broader population. Second, the correlational nature of this study sets into question the causal ordering of the variables in the proposed models. Future experimental or longitudinal research would provide more reliable evidence on the matter. Third, our findings suggest that the support for excessive use of force is highly ideological in nature, with both RWA and SDO being relevant predictors. Future research is required to examine the different reasons why individuals high in RWA and SDO express higher support for excessive use of force.

Finally, we recommend researchers press further the idea that legitimacy constrains coercive power. On the one hand, future studies might extend the array of different policing practices that legitimate the institution (cf. Huq et al., 2016). Of particular interest here would be an assessment of whether various legitimating practices that police engage in actually reflect normative constraint. Might, for instance, the use of particularly intrusive powers against certain out-groups serve to legitimate police for some social groups? If so, then the pursuit of legitimacy through such practices might not reflect the ‘taming of power’. Authorities might become motivated to engage in such a way because they see it as legitimating their own position in society. Similarly, legitimacy might generate the belief that such practices are acceptable. If so, then people who already see the police as legitimate may support counter-normative practices, or at the very least adopt an unquestioning stance to the right of the police to decide their own appropriate practice. As procedural justice theory and the role that legitimacy plays in crime-control policy gain traction in political and academic circles, these are important empirical questions to be addressed.

Notes

1. Respondents were asked whether they approve or disapprove (binary response) of police use of force in four different situations. Researchers typically treat two of these situations (striking an adult who was attempting to escape from custody and striking an adult who was attacking the policeman with his fists) as instances of reasonable use of force, while the two other situations (striking an adult who has said vulgar and obscene things and striking an adult who was being questioned as a suspect in a murder case) are usually considered examples of excessive use of force.

2. It is also plausible that people are imagining the excessive force being directed towards certain out-groups, the 'other' here may be the 'non-law abiding citizen' or 'offender' who may often be imagined to be ethnic and other minority groups, particular in contexts where ethnocentrism is strong and the police represent the dominant majority group (cf. Bradford et al., 2016).

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